

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>		1. SOLICITATION NUMBER 80KSC026R0012	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 1/16/2026	PAGE OF PAGES 1 of 64
IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					
4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER		6. PROJECT NUMBER N/A	
7. ISSUED BY NASA KENNEDY SPACE CENTER Office of Procurement KENNEDY SPACE CENTER, FL 32899 United States Kelley, Aaron L. (KSC-OPCS0), Contract Specialist, Email: aaron.l.kelley@nasa.gov		CODE 80KSC0		8. ADDRESS OFFER TO	
9. FOR INFORMATION CALL: 		a. NAME Aaron Kelley		b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i>	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

Project Title: Small Task Order Construction Contract II

STOCC II - This is a solicitation for a Multiple Award Indefinite Delivery/Indefinite Quantity construction contract.

The duration of this contract shall consist of a five (5) year ordering period from the date of contract award with a total maximum ceiling of \$100,000,000.

The Magnitude of Construction Projects will be vary per task order as outlined in Section B. Construction Task Orders issued under this IDIQ will range from \$2K (min) - \$5M (max).

General construction requirements (NAICS 236220) for John F. Kennedy Space Center, Florida. Size Standard: \$45M.

It has been determined that CLINs 0004-0006 will be reserved for 8(a) firms.

This acquisition will employ a two-phase selection procedure in accordance with the model deviation text for FAR Part 36, FAR 36.101-2

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>1</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☐ negotiable. (See <u>FAR 52.211-10</u>).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i> ☒ YES ☐ NO	12b. CALENDAR DAYS No
13. ADDITIONAL SOLICITATION REQUIREMENTS:	
a. Sealed offers in original and <u>1</u> copies to perform the work required are due at the place specified in Item 8 by <u>3:00 PM</u> (hour) local time <u>3/2/2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.	
b. An offer guarantee ☒ is, ☐ is not required.	
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.	
d. Offers providing less than <u>180</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.	

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print) Jacqueline Brooks Email: jacqueline.a.brooks@nasa.gov	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

Section A - Solicitation/Contract Form

Section is intentionally left blank

Section B - Supplies or Services and Prices/Cost

Additional Information/Notes

B.1 SUPPLIES AND/OR SERVICES TO BE PROVIDED

Kennedy Space Center will require a variety of construction activities over the next 5 years including building systems repairs, renovations, and facility construction activities. NASA/KSC requires an efficient and effective contracting method to support the growing mission needs to support these programs. The Small Task Order Construction Contract (STOCC) II will allow NASA to complete small construction activities, emergency repairs and urgent design build work in a timely manner by reducing acquisition time from requirement identification to Task Order award and implementation. The scope of this acquisition will include construction tasks in a variety of trades, such as building architectural repairs, roofing, interior and exterior electrical, mechanical/HVAC, plumbing, sheet metal, painting, demolition, concrete (flatwork and structures), masonry, welding, road repair, excavation, fire system upgrades, earthwork, and site improvements. The need also includes a design build component to address urgent projects that do not permit the traditional acquisition timelines. The primary objective is to obtain superior, timely, responsible and affordable construction services in an environment of constantly changing mission requirements. The construction contractors must provide flexible customer support as well as demonstrate ability to manage high volume of task orders and design planning to ensure dependable construction services.

B.2 BID SCHEDULE

This office intends to award a maximum of eight (8) Indefinite Delivery Indefinite Quantity contracts from this solicitation. Three (3) awards will be reserved for Small Business Administration (SBA) certified Small Business (SB) participants with demonstrated experience in mechanical construction requirements valued under the SAT. The remaining five (5) awards will be reserved for SBA certified 8(a) participants

B.3 Firm Fixed Price (NASA FAR Supplement (NFS)) (1852.216-78) (DEC 1988)

The total firm fixed price of this contract is **(Each Task order will be firm fixed price).**

*** The period of performance (ordering period) indicated in the 'Dates' column below will be five (5) years from the date of the IDIQ award. The dates currently shown (June 11, 2026 through June 10, 2031) are provided as estimates and are subject to adjustment based on the actual IDIQ award date.**

Item	Supplies/Service	Dates	Quantity	Unit	Unit Price	Amount
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0001	Task Order less than \$25,000 Product Service Code: Z2AA Severability: No Firm Fixed Price ***CLIN Value represents an estimated amount not the CLIN ceiling. The Contract Ceiling, inclusive of all CLINs (0001 - 0006), is \$100M.	Period of Performance From 11 JUN 2026 To 10 JUN 2031	35.0	Job		
0002	Task Order between \$25,001 - \$100,000 Product Service Code: Z2AA Severability: No Firm Fixed Price	Period of Performance From 11 JUN 2026 To 10 JUN 2031	55.0	Job		
0003	Task Order between \$100,001 - \$350,000 Product Service Code: Z2AA Severability: No Firm Fixed Price	Period of Performance From 11 JUN 2026 To 10 JUN 2031	65.0	Job		

0004	Task Order between \$350,001 - \$500,000 Product Service Code: Z2AA Severability: No Firm Fixed Price	Period of Perf ormanc e From 11 JUN 2026 To 10 JUN 2031	50.0	Job		
0005	Task Order between \$500,001 - \$1,000,000 Product Service Code: Z2AA Severability: No Firm Fixed Price	Period of Perf ormanc e From 11 JUN 2026 To 10 JUN 2031	25.0	Job		
0006	Task Order between \$1,000,001 - \$5,000,000 Product Service Code: Z2AA Severability: No Firm Fixed Price	Period of Perf ormanc e From 11 JUN 2026 To 10 JUN 2031	15.0	Job		

Section C - Description/Specifications/Statement of Work

C.1 Master Statement of Work

Refer to Section J, Attachment 1

C.2 Master Technical Specification

Refer to Section J, Attachment 3

Requirements

To establish a Firm-Fixed Price, IDIQ, Small Construction Task Order Contract (STOCC) II for Kennedy Space Center.

Section D - Packaging and Marking

NFS Clauses Incorporated by Full Text

1852.245-74 Identification and Marking of Government Equipment Jan 2011

(a) The Contractor shall identify all equipment to be delivered to the Government using NASA Technical Handbook (NASA-HDBK) 6003, Application of Data Matrix Identification Symbols to Aerospace Parts Using Direct Part Marking Methods/Techniques, and NASA Standard (NASA-STD) 6002, Applying Data Matrix Identification Symbols on Aerospace Parts or through the use of commercial marking techniques that:

(1) are sufficiently durable to remain intact through the typical lifespan of the property: and, (2) contain the data and data format required by the standards. This requirement includes deliverable equipment listed in the schedule and other equipment when no longer required for contract performance and NASA directs physical transfer to NASA or a third party. The Contractor shall identify property in both machine and human readable form unless the use of a machine readable-only format is approved by the NASA Industrial Property Officer.

(b) Equipment shall be marked in a location that will be human readable, without disassembly or movement of the equipment, when the items are placed in service unless such placement would have a deleterious effect on safety or on the item's operation.

(c) Concurrent with equipment delivery or transfer, the Contractor shall provide the following data in an electronic spreadsheet format:

- (1) Item Description.
- (2) Unique Identification Number (License Tag).
- (3) Unit Price.
- (4) An explanation of the data used to make the unique identification number.

(d) For equipment no longer needed for contract performance and physically transferred under paragraph (a) of this clause, the following additional data is required:

- (1) Date originally placed in service.
- (2) Item condition.

(e) The data required in paragraphs (c) and (d) of this clause shall be delivered to the NASA center receiving activity listed below:

(f) The contractor shall include the substance of this clause, including this paragraph (f), in all subcontracts that require delivery of equipment.

(End of clause)

Section E - Inspection and Acceptance

E.1 Inspection and Acceptance

Final inspection and acceptance of all work under this contract will be conducted by the Contracting Officer's Representative (COR) or the Alternate Contracting Officer's Representative (Alt COR) for this effort. Upon satisfactory completion of the contract, the Contractor shall be paid the fixed-price value of the contract, less the amount of any progress payments made under FAR Clause 52.232-5, Payments under Fixed-Price Construction Contracts.

NOTE: For planning purposes, the contractor shall include a line item in the schedule of values and progress schedule of each task order for completion of punch-list items, site clean-up, demobilization and final construction (as-built) drawings. The amount of this line item shall be equal to 10% of the Total Task Order Amount (inclusive of modifications) or \$100,000, whichever is less. The Government will not pay final invoices for this amount until all punchlist, site clean-up, and demobilization activities are complete; final construction drawings are delivered; and final acceptance is made.

[END OF SECTION]

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.246-12	Inspection of Construction.	Aug 1996
52.246-13	Inspection-Dismantling, Demolition, or Removal of Improvements.	Aug 1996

Section F - Deliveries or Performance

KSC Clauses Incorporated by Full Text

Commencement, Prosecution, and Completion of Work

The Contractor shall be required to (a) commence work under this contract within (*) calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than (*) after receipt of the Notice to Proceed. The time stated for completion shall include final cleanup of the premises. **(* Commencement, Prosecution and Completion of Work for all Task Orders under this contract will be specified for each Task Order by date or in calendar days).**

(End of clause)

KSC 52.211-92 Work Period

Contractor's work day will be limited to first shift 7:00 A.M. to 3:30 P.M., on Monday through Friday only. Any other work period will require special/ written approval from the Contracting Officer seven (7) days in advance of the proposed change in work periods.

(End of clause)

0001	<table><tr><td>Delivery Schedule</td></tr><tr><td>Period of Performance From 11 JUN 2026 To 10 JUN 2031</td></tr></table>	Delivery Schedule	Period of Performance From 11 JUN 2026 To 10 JUN 2031
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Delivery Schedule			
Period of Performance From 11 JUN 2026 To 10 JUN 2031			

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.211-12	Liquidated Damages-Construction.	Sep 2000
52.211-13	Time Extensions.	Sep 2000
52.236-15	Schedules for Construction Contracts.	Apr 1984
52.242-14	Suspension of Work.	Apr 1984

Section G - Contract Administration Data

G.1 CONTRACT ADMINISTRATION

a. Following award, this contract will be administered by the NASA/KSC Office of Procurement. The address, telephone number, and email of the Contracting Officer are:

National Aeronautics Space Administration

Office of Procurement

John F. Kennedy Space Center

Kennedy Space Center, 32899

Phone: (321) 867-5294

Email: Aaron.L.Kelley@nasa.gov

b. The Contracting Officer is the only person authorized to issue Task Orders, approve changes or modify any of the requirements under this contract and notwithstanding any provisions contained elsewhere in this contract, the authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in cost incurred as a result thereof.

c. Contractual problems, of any nature, which might occur during the performance of the contract must be handled in accordance with very specific public laws and regulations (e.g. Federal Acquisition Regulation), and must be referred to the Contracting Officer for resolution. Therefore, the Contractor is directed to submit all such contractual problems to the immediate attention of the Contracting Officer.

d. Any request for contract changes/modifications shall be submitted to the Contracting Officer.

e. All correspondence concerning this contract, such as requests for information, explanation of terms, and contract interpretations, shall be submitted to the Contracting Officer.

G.2 SUBMISSION OF VOUCHERS/INVOICES FOR PAYMENT (NFS 1852.232-80) (APR 2018)

(a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.

(b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information web site at: <https://www.nssc.nasa.gov/vendorpayment>. Please contact the NSSC Customer Contact Center at 1-877-NSSC123 (1-877-677-2123) with any additional questions or comments.

(c) Payment requests.

(1) The payment periods are stipulated in the payment clause(s) contained in this contract.

(2) Vouchers submitted under cost-type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) Vouchers.

(A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.

(B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs. (C) Indirect rate(s) used to calculate the amount of billed indirect expenses.

(D) Progress reports, as required.

(ii) Invoices.

(A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.

(B) Progress reports, as required.

(C) Date goods and services were performed.

(iii) Fee vouchers.

(A) Listing of all provisionally-billed fee by period or date earned since contract award.

(B) A reconciliation of all billed and earned fee.

(C) A clear explanation of the fee calculations.

(d) Non-electronic payment requests. The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at <https://www.nssc.nasa.gov/vendorpayment>, when any of the following conditions are met:

(1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.

(2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment requests. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.

(e) Improper vouchers/invoices. The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoices within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.

(f) Other payment clauses. In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

G.3 CONSTRUCTION PROGRESS PAYMENTS

In compliance with FAR Clause 52.232-5, Payments Under Fixed-Price Construction Contracts, the Contractor shall submit a breakdown using the items, major parts, and components that were approved by the Contracting Officer's Technical Representative (COR) for the approved schedule of construction (e.g. Bar Chart). The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on percentages of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer. **The Contracting Officer MAY authorize material payments only for materials that are delivered to the site. SUBMIT PROGRESS PAYMENTS IN THE FORMAT IDENTIFIED IN SECTION J - ATTACHMENT 5.**

G.4 LIST OF GOVERNMENT PROPERTY FURNISHED PURSUANT TO FAR 52.245-1 (NFS 1852.245-76) (JAN 2011)

For performance of work under this contract, the Government will make available Government property identified below or in Attachment * of this contract on a no charge-for-use basis pursuant to the clause at FAR 52.245-1, Government Property, as incorporated in this contract. The Contractor shall use this property in the performance of this contract at Kennedy Space Center and at other location(s) as may be approved by the Contracting Officer. Under FAR 52.245-1, the Contractor is accountable for the identified property.

(End of clause)

*** (Future Task Orders shall identify if Government Furnished Property will be provided.)**

G.5 OCCUPANCY MANAGEMENT REQUIREMENTS (NFS 1852.245-82) (SEP 2017)

(a) In addition to the requirements of the clause at FAR 52.245-1, Government Property, as included in this contract, the Contractor shall comply with the following in performance of work in and around Government real property:

(1) NPD 8800.14, Policy for Real Estate Management.

(2) NPR 8831.2, Facilities Maintenance and Operations Management.

(b) The Contractor shall obtain the written approval of the Contracting Officer before installing or removing Contractor-owned property onto or into any Government real property or when movement of Contractor-owned property may damage or destroy Government-owned property. The Contractor shall restore damaged property to its original condition at the Contractor's expense.

(c) The Contractor shall not acquire, construct or install any fixed improvement or structural alterations in Government buildings or other real property without the advance, written approval of the Contracting Officer. Fixed improvement or structural alterations, as used herein, means any alteration or improvement in the nature of the building or other real property that, after completion, cannot be removed without substantial loss of value or damage to the premises. Title to such property shall vest in the Government.

(d) The Contractor shall report any real property or any portion thereof when it is no longer required for performance under the contract, as directed by the Contracting Officer.

(End of clause)

G.6 REAL PROPERTY MANAGEMENT REQUIREMENTS (NFS 1852.245-83) (JAN 2011)

(a) In addition to the requirements of the FAR Government Property Clause incorporated in this contract (FAR 52.245-1), the Contractor shall comply with the following in performance of any maintenance, construction, modification, demolition, or management activities of any Government real property:

(1) NPD 8800.14, Policy for Real Estate Management.

(2) NPR 8831.2, Facilities Maintenance and Operations Management.

(b) Within 30 calendar days following award, the Contractor shall provide a plan for maintenance of Government real property provided for use under this contract. The Contractor's maintenance program shall enable the identification, disclosure, and performance of normal and routine preventative maintenance and repair. The Contractor shall disclose and report to the Contracting Officer the need for replacement and/or capital rehabilitation. Upon acceptance by the Contracting Officer, the program shall become a requirement under this contract.

(c) Title to parts replaced by the Contractor in carrying out its normal maintenance obligations shall pass to and vest in the Government upon completion of their installation in the facilities. The Contractor shall keep the property free and clear of all liens and encumbrances.

(d) The Contractor shall keep records of all work done to real property, including plans, drawings, charts, warranties, and manuals. Records shall be complete and current. Record of all transactions shall be auditable. The Government shall have access to these records at all reasonable times, for the purposes of reviewing, inspecting, and evaluating the Contractor's real property management effectiveness. When real property is disposed of under this contract, the Contractor shall deliver the related records to the Government.

(e) The Contracting Officer may direct the Contractor in writing to reduce the work required by the maintenance program authorized in paragraph (b) of this clause at any time.

(End of clause)

G.7 CONTRACTOR'S CONTRACT ADMINISTRATION

To Be Completed By The Contractor:

Name and Title: _____

Responsible Office: _____

Address: _____

Telephone Number _____

Email: _____

Cage Code: _____

Duns Number: _____

Tax Identification Number: _____

INDIVIDUAL(S) AUTHORIZED TO NEGOTIATE OR DISCUSS PROPOSALS

Name of Primary: _____ Name of Alternate: _____

Address: _____ Address: _____

Telephone #: _____ Telephone #: _____

Alternate #: _____ Alternate #: _____

Fax No: _____ Fax No: _____

Email: _____ Email: _____

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.216-32	Task-Order and Delivery-Order Ombudsman.	Sep 2019

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.245-75	Property Management Changes.	Jan 2011

NFS Clauses Incorporated by Full Text

1852.245-71 Installation-Accountable Government Property.Jun 2018

(a) The Government property described in paragraph (c) of this clause may be made available to the Contractor on a no-charge basis for use in performance of this contract. This property shall be utilized only within the physical confines of the NASA installation that provided the property unless authorized by the Contracting Officer under (b)(1)(iv). Under this clause, the Government retains accountability for, and title to, the property, and the Contractor shall comply with the following:

NASA Procedural Requirements (NPR) 4100.1, NASA Materials Inventory Management Manual;

NASA Procedural Requirements (NPR) 4200.1, NASA Equipment Management Procedural Requirements;

NASA Procedural Requirement (NPR) 4300.1, NASA Personal Property Disposal Procedural Requirements;

.

Property not recorded in NASA property systems must be managed in accordance with the requirements of the clause at FAR 52.245-1, as incorporated in this contract.

The Contractor shall establish and adhere to a system of written procedures to assure continued, effective management control and compliance with these user responsibilities. In accordance with FAR 52.245-1(h)(1) the contractor shall be liable for property lost, damaged, destroyed or stolen by the contractor or their employees when determined responsible by a NASA Property Survey Board, in accordance with the NASA guidance in this clause.

(b)

(1) The official accountable recordkeeping, financial control, and reporting of the property subject to this clause shall be retained by the Government and accomplished within NASA management information systems prescribed by the installation Supply and Equipment Management Officer (SEMO) and Financial Management Officer. If this contract provides for the Contractor to acquire property, title to which will vest in the Government, the following additional procedures apply:

(i) The Contractor's purchase order shall require the vendor to deliver the property to the installation central receiving area.

(ii) The Contractor shall furnish a copy of each purchase order, prior to delivery by the vendor, to the installation central receiving area.

(iii) The Contractor shall establish a record for Government titled property as required by FAR 52.245-1, as incorporated in this contract, and shall maintain that record until accountability is accepted by the Government.

(iv) Contractor use of Government property at an off-site location and off-site subcontractor use requires advance approval of the Contracting Officer and notification of the Industrial Property Officer. The property shall be considered Government furnished and the Contractor shall assume accountability and financial reporting responsibility. The Contractor shall establish records and property control procedures and maintain the property in accordance with the requirements of FAR 52.245-1, Government Property (as incorporated in this contract), until its return to the installation. NASA Procedural Requirements related to property loans shall not apply to offsite use of property by contractors.

(2) After transfer of accountability to the Government, the Contractor shall continue to maintain such internal records as are necessary to execute the user responsibilities identified in paragraph (a) of this clause and document the acquisition, billing, and disposition of the property. These records and supporting documentation shall be made available, upon request, to the SEMO and any other authorized representatives of the Contracting Officer.

(c) The following property and services are provided if checked:

(1) Office space, work area space, and utilities. Government telephones are available for official purposes only.

(2) Office furniture.

(3) Property listed in .

(i) If the Contractor acquires property, title to which vests in the Government pursuant to other provisions of this contract, this property also shall become accountable to the Government upon its entry into Government records.

(ii) The Contractor shall not bring to the installation for use under this contract any property owned or leased by the Contractor, or other property that the Contractor is accountable for under any other Government contract, without the Contracting Officer's prior written approval.

(4) Supplies from stores stock.

(5) Publications and blank forms stocked by the installation.

(6) Safety and fire protection for Contractor personnel and facilities.

(7) Installation service facilities: .

(8) Medical treatment of a first-aid nature for Contractor personnel injuries or illnesses sustained during on-site duty.

(9) Cafeteria privileges for Contractor employees during normal operating hours.

(10) Building maintenance for facilities occupied by Contractor personnel.

(11) Moving and hauling for office moves, movement of large equipment, and delivery of supplies. Moving services may be provided on-site, as approved by the Contracting Officer.

(End of clause)

Section H - Special Contract Requirements

H.1 TASK ORDER PROCEDURES

1.0 Each task order solicitation will be a request for proposal only and does not constitute authority to proceed or to incur any cost associated with contract performance. No legal liability shall reside on the part of the Government for any amount until a task order is signed by the Contracting Officer.

2.0 The Government plans to issue task order awards without holding discussions with the offerors. Therefore, the offeror's initial offer should contain the offeror's best terms. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

3.0 After award of the initial IDIQ contracts, the Government intends for contractors to compete for future task orders using one of the following evaluation methods: low price, low price technically acceptable (LPTA), or best value. The chosen method will typically correspond to the level of design or complexity required in the proposal. In most cases, best value will apply to CLIN 0006, while low price or LPTA will apply to CLINs 0001-0005. Although the Government reserves the right to select the evaluation method for each task order, the request for proposal (RFP) for each task order will clearly state the method of selection

4.0 As requirements are identified, the government will issue Request for Proposals (RFPs) that will describe the scope required along with the required proposal response time and the applicable construction wage determination. A site visit will be scheduled within 7 calendar days with the contractors to verify measurements and elements of work. If negotiations are required, they will commence once the Government has completed their technical evaluation of the proposals. Task orders awards will be issued on a DD Form 1442. The performance period will be cited in each RFP for each task order. All task orders issued hereunder are subject to the terms and conditions of this contract. Note: It is the Government's intent to issue ALL task orders with an established firm fixed price.

5.0 The following describes the procedures for each type of requirement:

Design/ Build (100%): The solicitation will include a Statement of Objectives (SOO), describing what the Government requires as the final result of the Design/Build project. Based on the SOO, the Contractor will be responsible for performing all necessary research and design work to create a 15% design package. The 15% design package must include a Statement of Work (SOW) and drawings that show how the Contractor plans to meet the requirements stated in the SOO. The Government will review the 15% design package to determine whether it meets the Government's requirements. If the 15% design package meets the Government's requirements, the Contractor will be asked to submit a price proposal for the project. If the 15% design package does not meet the Government's requirements, the Government may revise the SOO and request a new 15% design package. The Government will clearly state which design(s) are acceptable. Once the Government's technical review of the 15% design package is complete and the Contractor submits a price proposal, negotiations--if needed--will begin.

Minimal Design Build: The solicitation will include a brief Statement of Work (SOW), describing what the Government requires as the final result of the Minimal Design Build project. Based on the SOO, the Contractor will be responsible for performing all necessary research and design work to develop a 35% design package. The 35% design package must include a Statement of Work and drawings that show how the Contractor plans to meet the requirements stated in the SOO. The government will review the 35% design package to determine whether it meets the Government's requirements. If the 35% design package meets the Government's requirements, the Contractor will be asked to submit a price proposal, negotiations--if needed--will begin after the Government finishes its technical review.

Construction: The solicitation will include a Statement of Objectives and supporting documentation (specifications and drawings) describing what the Government requires as a final project deliverable. Based on

the documents provided, the contractor will submit a price proposal. If negotiations are required, they will commence once the Government has completed its technical evaluation.

6.0 Davis Bacon Act Wage Rates: Each Request for Proposal (RFP) will identify the applicable Construction Wage Rate Decision(s) for the specific project. These wage determinations are issued under the Davis-Bacon Act and can also be found at <https://sam.gov>.

The wage determination included in each task order will reflect the current Decision Number and Modification in effect at the time of award. The applicable rates will be based on the following criteria: State: Florida; County: Brevard; Construction Type: Building, Heavy, or Highway

7.0 Payment and Performance Bonds: Payment and Performance bond requirements pertain to the issuance of all task orders. Note: FAR Clause 52.228-15 (located in section I), all references to "contract" also includes any resulting Task Orders issued against this contract.

8.0 Identification of Correspondence: All correspondence and documents submitted by the contractor must include the contract number, task order number, and project title.

9.0 Identification of Government Furnished Property (GFP): Pursuant to the "Government Property" clause herein, the Government will furnish the item(s) of the property listed below as Government Furnished Property to the contractor, FOB Destination, for use in performance of this contract:

10.0 ITEM NUMBER QUANTITY DESCRIPTION VALUE

Will be cited in each individual task order as applicable.

11.0 No protest under Subpart 33.1 is authorized in connection with the issuance or proposed issuance of an order under a task-order contract or delivery - order contract, except for--

(i) A protest on the grounds that the order increases the scope, period, or maximum value of the contract.

12.0 For these contracts, the designated task order ombudsman can be found at the following link: <https://www.hq.nasa.gov/office/procurement/regs/Procurement-Ombuds-Comp-Advocate-Listing.pdf>. The task order ombudsman is responsible for reviewing complaints from multiple award contractors and ensuring that all of the Contractors are afforded a fair opportunity to be considered for task orders in excess of \$3,500, consistent with procedures in the contract. However, it is not within the designated task order contract ombudsman's authority to prevent the issuance of an order or disturb an existing order.

13.0 Past performance will be tracked electronically for all task orders over \$750,000. It may also be tracked for task orders below this amount at the Government's discretion.

H.2 FAIR OPPORTUNITY

1.1 Each awardee will be provided a fair opportunity to be considered for all task order unless one of the following exceptions applies:

(i) The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.

(ii) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. Due to the inherent risk/size /complexity, contractors working in the same space etc.

(iii) The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

(iv) It is necessary to place an order to satisfy a minimum guarantee.

H.3 ON-RAMP CLAUSE

ON-RAMP PROVISION: The Government reserves the right to add new contractors to the IDIQ contract at any time during the contract period. This on-ramping process will be initiated to ensure continued competition, accommodate new market entrants, or address evolving requirements. New contractors will be evaluated based on the same criteria as the original awardees and must meet all current contract requirements. Additionally, the Government may consider the next ranking non-selectee from the initial source selection for on-ramping, provided they still meet the necessary qualifications and requirements.

This addition ensures that qualified contractors who narrowly missed the initial selection have an opportunity to participate, maintaining a competitive and dynamic contractor pool.

H.4 OFF-RAMP CLAUSE

OFF-RAMP PROVISION: The Government reserves the right to remove contractors from the IDIQ contract if they fail to meet performance standards, do not actively compete for task orders, or if their services are no longer required. Contractors will be given a 30-day notice and an opportunity to address any performance issues before being off-ramped. Additionally, contractors receiving unsatisfactory CPARS ratings may be subject to off ramping. The Government will review CPARS ratings periodically, and contractors with consistently low ratings will be notified and given an opportunity to improve their performance before any off-ramping action is taken.

This addition ensures that performance is continuously monitored and that contractors are held accountable for maintaining high standards.

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.223-70	Safety and Health Measures and Mishap Reporting.	Dec 2015
1852.223-75	Major Breach of Safety or Security.	Feb 2002
1852.242-72	Denied Access to NASA Facilities.	Oct 2015
1852.243-72	Equitable Adjustments.	Apr 1998

NFS Clauses Incorporated by Full Text

1852.225-70 Export Licenses.Feb 2000

(a) The Contractor shall comply with all U.S. export control laws and regulations, including the International Traffic in Arms Regulations (ITAR), 22 CFR parts 120–130, and the Export Administration Regulations (EAR), 15 CFR parts 730–799, in the performance of this contract. In the absence of available license exemptions /exceptions, the Contractor shall be responsible for obtaining the appropriate licenses or other approvals, if required, for exports of hardware, technical data, and software, or for the provision of technical assistance.

(b) The Contractor shall be responsible for obtaining export licenses, if required, before utilizing foreign persons in the performance of this contract, including instances where the work is to be performed on-site at *John F. Kennedy Space Center, FL*, where the foreign person will have access to export-controlled technical data or software.

(c) The Contractor shall be responsible for all regulatory record keeping requirements associated with the use of licenses and license exemptions/exceptions.

(d) The Contractor shall be responsible for ensuring that the provisions of this clause apply to its subcontractors.

(End of clause)

KSC Clauses Incorporated by Full Text

KSC 52.223-121 REPORTING OF INCIDENTS INVOLVING WORKPLACE VIOLENCE Oct 2023

The contractor shall conduct training on and develop procedures for recognizing, managing and responding to incidents and threats of workplace violence as defined in NASA Policy Directive (NPD) 1600.3 Policy on Prevention of and Response to Workplace Violence and Kennedy NASA Procedural Requirement (KNPR) 1620.9 Kennedy Space Center Workplace Violence Prevention and Response Program. Contractors shall also promptly report all incidents involving workplace violence to the Protective Services Office. If the NASA Threat Assessment Team (TAT) Chair and Co-Chair determine it is appropriate for the contractor to participate in a TAT meeting, the contractor shall comply with the TAT request. The contractor is also responsible for reporting disposition of the incident reported to the NASA TAT.

This requirement shall flow down to the subcontractors, however the subcontractors shall report up through the prime contractor.

(End of clause)

KSC 52.242-90 CONTROLS APPLICABLE TO CONTRACTOR'S ACTIVITIES Oct 2023

The Contractor shall comply with the publications listed and those checked as applicable below, and subsequent revision thereof, that the Contracting Officer has indicated as being incorporated in this contract by reference. These publications prescribe regulatory and procedural criteria which are applicable to this contract. The contractor shall promptly take corrective action upon notice of noncompliance from the Contracting Officer or his/her authorized representative(s) with any provision of the publications listed below.

The Contractor shall comply with the following publication, which can be found at <https://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPR&c=1600&s=4A> :

NPR 1600.4A, Identity and Credential Management

The Contractor shall comply with the following publications and those publications checked as applicable below. These documents can be found at <https://public.ksc.nasa.gov/ppd/documents>

KNPR 8715.2, Comprehensive Emergency Management Plan

KNPR 1600.1, KSC Security Procedural Requirements

KNPR 8500.1, KSC Environmental Requirements

KNPR 8715.3, KSC Safety Procedural Requirements

KNPD 1600.3, Use of Alcoholic Beverages on Kennedy Space Center (KSC) Property

Check if applicable:

KNPD 1810.1 KSC Occupational Medicine Program

KNPR 1860.1 KSC Ionizing Radiation Protection Program

KNPR 1860.2 KSC Nonionizing Radiation Protection Program

KNPR 1820.3 KSC Hearing Loss Prevention Program

KNPR 1820.4 KSC Respiratory Protection Program

KNPR 1840.19 KSC Industrial Hygiene Programs

45SWI40-201 45th Space Wing Instruction 40-201 Radiation Protection Program

KNPR 1840.1 KSC Hazard Communication Program

KNPR 1870.1 KSC Sanitation and Public Health Program

KNPR 2570.1 KSC Radio Frequency Spectrum Management Procedural Requirements

KNPR 4000.1 Supply and Equipment Program Manual

KNPR 6000.1 KSC Transportation Support System Manual

XKNPR 8715.7 KSC Construction Contractor Safety and Health Practices Procedural Requirements

KNPR 8830.1 Facility Asset Management Procedural Requirements

(End of clause)

**KSC 52.242-93 CONTRACTOR WORKFORCE REPORT - ONSITE CONTRACTORS AND SUBCONTRACTORS.
Mar 2022**

The Contractor shall submit, on a quarterly basis, a manpower report delineating information about its workforce, including the same level of information about its subcontractor workforce performing on the contract (if applicable). The report shall include: the contract number, the contractor's total on-site workforce, total on-site union represented employees by bargaining unit, total on-site non-union represented employees, total off-site workforce, and total workforce in a full-time teleworking status performing on the contract. The Contractor shall provide this information no later than 10 days after the close of each reporting period, which ends March 31st, June 30th, September 30th, and December 31st. The report shall be submitted to the Contracting Officer with a copy to the Industrial Labor Relations Office at KSC-DL-OP-IndustrialRelations@mail.nasa.gov.

In the event of an Emergency situation at KSC where access to the Center is restricted for a period that exceeds 45 days (such as a pandemic or similar emergency), the Contracting Officer may require the Contractor to submit the manpower report on a monthly basis instead of quarterly, including the total contractor /subcontractor workforce under any government directed reporting categories. The Contractor shall provide this information no later than 10 days after the end of each month. The Contracting Officer will notify the Contractor when the Emergency situation ends, and the reporting frequency shall return to quarterly.

(End of clause)

Section I - Contract Clauses

FAR Clauses Incorporated by Full Text

FAR 52.219-18 Notification of Competition Limited to Eligible 8(a) Participants (Oct 2022)

(a) Offers are solicited only from--

(1) Small business concerns expressly certified by the Small Business Administration (SBA) for participation in SBA's 8(a) program and which meet the following criteria at the time of submission of offer--

(i) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and

(ii) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by SBA;

(2) A joint venture, in which at least one of the 8(a) program participants that is a party to the joint venture complies with the criteria set forth in paragraph (a)(1) of this clause, that complies with [13 CFR 124.513\(c\)](#); or

(3) A joint venture--

(i) That is comprised of a mentor and an 8(a) protege with an approved mentor-protege agreement under the 8(a) program;

(ii) In which at least one of the 8(a) program participants that is a party to the joint venture complies with the criteria set forth in paragraph (a)(1) of this clause; and

(iii) That complies with [13 CFR 124.513\(c\)](#).

(b) By submission of its offer, the Offeror represents that it meets the applicable criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made to the Small Business Administration, which will subcontract performance to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation. A contracting officer may consider a joint venture for contract award. SBA does not approve joint ventures for competitive awards, but see [13 CFR 124.501\(g\)](#) for SBA's determination of participant eligibility.

(d) The contractor will notify the NASA Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock.

(End of clause)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.202-1	Definitions.	Jun 2020
52.203-3	Gratuities.	Apr 1984
52.203-5	Covenant Against Contingent Fees.	May 2014
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020
52.203-7	Anti-Kickback Procedures.	Jun 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021
52.203-14	Display of Hotline Poster(s).	Nov 2021
52.203-17	Contractor Employee Whistleblower Rights.	Nov 2023

52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020
52.204-13	System for Award Management Maintenance.	Oct 2018
52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts.	Oct 2016
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment.	Jan 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015
52.215-2	Audit and Records-Negotiation.	Jun 2020
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data-Modifications.	Jun 2020
52.215-12	Subcontractor Certified Cost or Pricing Data.	Jun 2020
52.215-13	Subcontractor Certified Cost or Pricing Data-Modifications.	Jun 2020
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications.	Nov 2021
52.217-2	Cancellation Under Multi-year Contracts.	Oct 1997
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020
52.219-7	Notice of Partial Small Business Set-Aside.	Nov 2020
52.219-8	Utilization of Small Business Concerns.	Jan 2025
52.219-14	Limitations on Subcontracting.	Oct 2022
52.219-28	Post-Award Small Business Program Rerepresentation.	Jan 2025
52.222-1	Notice to the Government of Labor Disputes.	Feb 1997
52.222-3	Convict Labor.	Jun 2003
52.222-4	Contract Work Hours and Safety Standards -Overtime Compensation.	May 2018
52.222-6	Construction Wage Rate Requirements.	Aug 2018
52.222-7	Withholding of Funds.	May 2014
52.222-8	Payrolls and Basic Records.	Jul 2021
52.222-9	Apprentices and Trainees.	Jul 2005
52.222-10	Compliance with Copeland Act Requirements.	Feb 1988
52.222-11	Subcontracts (Labor Standards).	May 2014
52.222-12	Contract Termination-Debarment.	May 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014
52.222-14	Disputes Concerning Labor Standards.	Feb 1988
52.222-15	Certification of Eligibility.	May 2014
52.222-35	Equal Opportunity for Veterans.	Jun 2020
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020
52.222-37	Employment Reports on Veterans.	Jun 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act.	Dec 2010
52.222-50	Combating Trafficking in Persons.	Nov 2021
52.222-54	Employment Eligibility Verification.	Jan 2025
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Jan 2022
52.222-62	Paid Sick Leave Under Executive Order 13706.	Jan 2022
52.223-3	Hazardous Material Identification and Material Safety Data.	Feb 2021
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024
52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons.	May 2024
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners.	May 2024
52.225-9	Buy American-Construction Materials.	Oct 2022
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-1	Authorization and Consent.	Jun 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007
52.227-17	Rights in Data-Special Works.	Dec 2007
52.228-2	Additional Bond Security.	Oct 1997
52.228-5	Insurance-Work on a Government Installation.	Jan 1997
52.228-11	Individual Surety—Pledge of Assets.	Feb 2021
52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022
52.228-14	Irrevocable Letter of Credit.	Nov 2014
52.228-15	Performance and Payment Bonds-Construction.	Jun 2020

52.229-3	Federal, State, and Local Taxes.	Feb 2013
52.232-5	Payments under Fixed-Price Construction Contracts.	May 2014
52.232-16	Progress Payments.	Nov 2021
52.232-16 Alternate I	Progress Payments. Alternate I	Mar 2000
52.232-17	Interest.	May 2014
52.232-18	Availability of Funds.	Apr 1984
52.232-23	Assignment of Claims.	May 2014
52.232-27	Prompt Payment for Construction Contracts.	Jan 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.233-1	Disputes.	May 2014
52.233-1 Alternate I	Disputes. Alternate I	Dec 1991
52.233-3	Protest after Award.	Aug 1996
52.233-3 Alternate I	Protest after Award. Alternate I	Jun 1985
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004
52.236-2	Differing Site Conditions.	Apr 1984
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984
52.236-5	Material and Workmanship.	Apr 1984
52.236-6	Superintendence by the Contractor.	Apr 1984
52.236-7	Permits and Responsibilities.	Nov 1991
52.236-8	Other Contracts.	Apr 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984
52.236-10	Operations and Storage Areas.	Apr 1984
52.236-11	Use and Possession Prior to Completion.	Apr 1984
52.236-12	Cleaning Up.	Apr 1984
52.236-13	Accident Prevention.	Nov 1991
52.236-14	Availability and Use of Utility Services.	Apr 1984
52.236-17	Layout of Work.	Apr 1984
52.236-21	Specifications and Drawings for Construction.	Feb 1997
52.236-22	Design Within Funding Limitations.	Apr 1984
52.236-23	Responsibility of the Architect-Engineer Contractor.	Apr 1984
52.236-24	Work Oversight in Architect-Engineer Contracts.	Apr 1984
52.236-25	Requirements for Registration of Designers.	Jun 2003
52.242-13	Bankruptcy.	Jul 1995
52.243-4	Changes.	Jun 2007
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services).	Aug 1998
52.244-6	Subcontracts for Commercial Products and Commercial Services.	Jan 2025
52.245-1	Government Property.	Sep 2021
52.245-9	Use and Charges.	Apr 2012
52.246-21	Warranty of Construction.	Mar 1994
52.248-3	Value Engineering-Construction.	Oct 2020
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012
52.249-2 Alternate I	Termination for Convenience of the Government (Fixed-Price). Alternate I	Sep 1996
52.249-7	Termination (Fixed-Price Architect-Engineer).	Apr 1984
52.249-10	Default (Fixed-Price Construction).	Apr 1984
52.253-1	Computer Generated Forms.	Jan 1991

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.203-70	Display of Inspector General Hotline Posters.	Jun 2001
1852.203-71	Requirement to Inform Employees of Whistleblower Rights.	Jul 2023
1852.215-84	Ombudsman.	Nov 2023
1852.223-74	Drug- and Alcohol-Free Workforce.	Oct 2023
1852.228-75	Minimum Insurance Coverage.	Oct 1988
1852.232-79	Payment for On-Site Preparatory Costs.	Sep 1987
1852.236-73	Hurricane Plan.	Dec 1988
1852.237-70	Emergency Evacuation Procedures.	Dec 1988
1852.237-73	Release of Sensitive Information.	Jun 2005

FAR Clauses Incorporated by Full Text

52.216-18 Ordering.Aug 2020

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from *date of award* through *five years after date of the award*.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered "issued" when—
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor's fax number; or
 - (3) If sent electronically, the Government either—
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor's email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.Oct 1995

- (a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than \$2,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
- (b) *Maximum order*. The Contractor is not obligated to honor-
 - (1) Any order for a single item in excess of \$5,000,000;
 - (2) Any order for a combination of items in excess of \$100,000,000; or
 - (3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.Oct 1995

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after *one year from the expiration date of the contract*.

(End of clause)

52.219-13 Notice of Set-Aside of Orders.Mar 2020

(a) The Contracting Officer may set aside orders for the small business concerns identified in 19.000(a)(3).

(b) The Contracting Officer will give notice of the order or orders, if any, to be set aside for small business concerns identified in 19.000(a)(3) and the applicable small business program. This notice, and its restrictions, will apply only to the specific orders that have been set aside for any of the small business concerns identified in 19.000(a)(3).

(End of clause)

52.219-17 Section 8(a) Award.Oct 2019

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1) To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section 8(a) of the Small Business Act, as amended ([15 U.S.C. 637\(a\)](#)).

(2) Except for novation agreements, delegates to the NASA the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the NASA Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

52.223-2 Reporting of Biobased Products Under Service and Construction Contracts. Deviation Feb 2025

(a) Definitions. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR 4270.2).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

(1) That are listed by USDA in a procurement guideline available at <https://www.biopreferred.gov/resources/categories.html>; and

(2) For which USDA has provided purchasing recommendations available at <https://www.biopreferred.gov> or 7 CFR part 4270).

(b) The Contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

(1) October 31 of each year during contract performance; and

(2) At the end of contract performance.

(End of clause)

52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items. May 2008

(a) *Definitions.* As used in this clause—

Postconsumer material means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of "recovered material."

"Recovered material" means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall—

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of post-consumer material content; and

(2) Submit this estimate to *Office of Procurement, ATTN: Contracting Officer at NASA OP-CS*.

(End of clause)

52.223-23 Sustainable Products and Services. Deviation Feb 2025

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR part 4270.2).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means:

(1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

(3) Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR part 4270) (<https://www.biopreferred.gov>).

(4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap>).

(b) Requirements.

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

(i) Delivered to the Government;

(ii) Furnished for use by the Government;

(iii) Incorporated into the construction of a public building or public work; and

(iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(c) Resource. The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which statutory purchasing programs apply to a specific product or service.

(End of clause)

52.252-2 Clauses Incorporated by Reference.Feb 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/> and <https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of clause)

52.252-6 Authorized Deviations in Clauses.Nov 2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any *NASA FAR Supplement* (48 CFR Chapter 18) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

NFS Clauses Incorporated by Full Text

1852.204-76 Security Requirements for Unclassified Information Technology Resources Deviation Sep 2025

(a) The contractor must protect the confidentiality, integrity, and availability of NASA Electronic Information and Information Technology (IT) resources and protect NASA Electronic Information from unauthorized disclosure.

(b) This clause is applicable to all NASA contractors and sub-contractors that process, manage, access, or store unclassified electronic information, to include Sensitive But Unclassified (SBU) information or Controlled Unclassified Information (CUI), for NASA in support of NASA's missions, programs, projects and /or institutional requirements. Applicable requirements, regulations, policies, and guidelines are identified in contract. The NASA data requirements description (DRD), "Security for Unclassified Information Technology Resources," defines specific implementation requirements for this clause. For policy information considered sensitive, the documents will be identified as such in the contract and made available through the contracting officer.

(c) Definitions.

(1) IT resources means any hardware or software or interconnected system or subsystem of equipment, that is used to process, manage, access, or store electronic information.

(2) NASA Electronic Information is any data (as defined in the Rights in Data clause of this contract) or information (including information incidental to contract administration, such as financial, administrative, cost or pricing, or management information) that is processed, managed, accessed or stored on an IT system(s) in the performance of a NASA contract.

(3) Federal Information System (FIS). The term "Federal information system" means an information system used or operated by an executive agency, by a contractor of an executive agency, or by another organization on behalf of an executive agency (40 U.S.C. 11331)

(4) Information System Security Plan (i.e., System Security Plan, IT Security Plan, or Security Plan) means a formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.

(d) Contractors that process, store, or transmit Federal information or operate information systems on behalf of the federal government must meet the same security and privacy requirements as federal agencies. The contractor must develop and submit an Information Security Plan when operating a FIS or maintaining or collecting information for the purpose of processing, storing, or transmitting federal information, and those activities are not incidental to providing a service or product to the Government. Such FIS plans are to be accomplished in accordance with the current version of NASA Procedural Requirements (NPR) 2810.1 Security of Information and Information Systems. The security plan and Authorization to Operate (ATO) must be in place before any system may operate in the NASA environment. When the contractor does not operate a FIS but

receives, process, transmits, or stores NASA information in performance of the contract, the contractor must attest to the ability to secure NASA information within its own IT/information system.

(e) The contractor must afford Government access to the contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access must be provided to the extent required to carry out a program of IT inspection (to include vulnerability testing), investigation and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of NASA Electronic Information or to the function of IT systems operated on behalf of NASA, and to preserve evidence of computer crime. The contractor must report immediately upon notification any incident involving NASA information on non-federal (contractor) systems.

(f) The contractor must provide the name and contact information for the contractor's IT security point of contact during phase in of the contract. Contractor employees requiring physical access to NASA facilities or electronic access to NASA systems must complete the NASA Cybersecurity and Privacy Awareness Training.

(g) The contractor must insert this clause, including this paragraph in all subcontracts that process, manage, access or store NASA Electronic Information in support of the mission of the Agency.

(End of clause)

1852.216-80 Task Ordering Procedure.Oct 1996

(a) Only the Contracting Officer may issue task orders to the Contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The Contractor may incur costs under this contract in performance of task orders and task order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the Contracting Officer.

(b) Prior to issuing a task order, the Contracting Officer shall provide the Contractor with the following data:

(1) A functional description of the work identifying the objectives or results desired from the contemplated task order.

(2) Proposed performance standards to be used as criteria for determining whether the work requirements have been met.

(3) A request for a task plan from the Contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the Contractor's proposal.

(c) Within * *See Paragraph 8.0 of the Master SOW (Attachment 1 of Section J)* calendar days after receipt of the Contracting Officer's request, the Contractor shall submit a task plan conforming to the request.

(d) After review and any necessary discussions, the Contracting Officer may issue a task order to the Contractor containing, as a minimum, the following:

(1) Date of the order.

(2) Contract number and order number.

(3) Functional description of the work identifying the objectives or results desired from the task order, including special instructions or other information necessary for performance of the task.

- (4) Performance standards, and where appropriate, quality assurance standards.
- (5) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.
- (6) Any other resources (travel, materials, equipment, facilities, etc.) authorized.
- (7) Delivery/performance schedule including start and end dates.
- (8) If contract funding is by individual task order, accounting and appropriation data.
- (e) The Contractor shall provide acknowledgement of receipt to the Contracting Officer within 3 calendar days after receipt of the task order.
- (f) If time constraints do not permit issuance of a fully defined task order in accordance with the procedures described in paragraphs (a) through (d), a task order which includes a ceiling price may be issued.
- (g) The Contracting officer may amend tasks in the same manner in which they are issued.
- (h) In the event of a conflict between the requirements of the task order and the Contractor's approved task plan, the task order shall prevail.

(End of clause)

1852.216-80 Task Ordering Procedure. Alternate II Apr 2018

(i) Contractor shall submit progress reports, as required. When required, the reports shall contain, at a minimum, the following information:

- (1) Contract number, task order number, and date of the order.
- (2) Price and billed amounts to date for each task order.
- (3) Significant issues/problems associated with the task order.
- (4) Status of all task orders issued under the contract.
- (5) Invoice number.

1852.219-18 Notification of Competition Limited to Eligible 8(a) Concerns. Apr 2015

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in the SBA's 8(a) Program and which meet the following criteria at the time of submission of offer—

- (1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and
- (2) The Offeror is in conformance with the Business Activity Targets set forth in its approved business plan or any remedial action directed by the SBA.

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made directly by the Contracting Officer to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)

(1) *Agreement.* A small business concern submitting an offer in its own name shall furnish, in performing the contract, only end items manufactured or produced by small business concerns in the United States or its outlying areas. If this procurement is processed under simplified acquisition procedures and the total amount of this contract does not exceed \$25,000, a small business concern may furnish the product of any domestic firm. This paragraph does not apply to construction or service contracts.

(2) The *Contractors* will notify the NASA Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

1852.219-11 Special 8(a) Contract Conditions. Apr 2015

(a) This contract is issued as a direct award between the contracting activity and the 8(a) contractor pursuant to a Partnership Agreement between the Small Business Administration (SBA) and the National Aeronautics and Space Administration. Accordingly, the SBA is not a signatory to this contract. SBA does retain responsibility for 8(a) certification, 8(a) eligibility determinations and related issues, and providing counseling and assistance to the 8(a) contractor under the 8(a) program. The cognizant SBA district office is:

(insert name and address of cognizant SBA office)

(b) The contracting activity is responsible for administering the contract and taking any action on behalf of the Government under the terms and conditions of the contract; provided, however, that the contracting activity shall give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the contract. The contracting activity shall also coordinate with the SBA prior to processing any novation agreement. The contracting activity may assign contract administration functions to a contract administration office.

(c) The contractor agrees to notify the Contracting Officer, simultaneous with its notification to SBA (as required by SBA's 8(a) regulations), when the owner or owners upon whom 8(a) eligibility is based plan to relinquish ownership or control of the concern. Consistent with Section 407 of Public Law 100-656, transfer of ownership or control shall result in termination of the contract for convenience, unless SBA waives the requirement for termination prior to the actual relinquishing of ownership and control.

(End of clause)

1852.225-71 Restriction on Funding Activity with China Deviation Feb 2012

(a) Definition - "China" or "Chinese-owned company" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 539, restrict NASA from contracting to participate, collaborate, coordinate bilaterally in any way with China or a Chinese-owned company using funds appropriated on or after April 25, 2011. Contracts for commercial and non developmental items are exempted from the prohibition because they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) This contract may use restricted funding that was appropriated on or after April 25, 2011. The contractor shall not contract with China or Chinese-owned companies for any effort related to this contract except for acquisition of commercial and non-developmental items. If the contractor anticipates making an award to China or Chinese-owned companies, the contractor must contact the contracting officer to determine if funding on this contract can be used for that purpose.

(d) Subcontracts - The contractor shall include the substance of this clause in all subcontracts made hereunder.

(End of clause)

Section J - List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	URL	Line Item
01	Attachment 1 Master Statement of Work	Statement of Work	Attachment 1	07 JAN 2026		
02	Attachment 2 Technical Reference 001	Supporting Technical Documentation	Attachment 2	07 JAN 2026		
03	Attachment 3 Technical Reference 002	Supporting Technical Documentation	Attachment 3	07 JAN 2026		
04	Attachment 4 Technical Reference 003	Supporting Technical Documentation	Attachment 4	07 JAN 2026		
05	Attachment 5 Pay Request Form	Pay Request Form	Attachment 5	28 AUG 2025		
06	Attachment 6 STOCC II Questionnaire	STOCC II Questionnaire	Attachment 6	15 JAN 2026		
07	Attachment 7 QA Template	Q&A Template	Attachment 7	28 AUG 2025		
08	Attachment 8 Proposal Submission Checklist	Proposal Submission Checklist	Attachment 8	16 JAN 2026		
09	Attachment 9 Safety and Health Program	Safety and Health Program	Attachment 9	16 JAN 2026		
10	Attachment 10 Past Performance Assessment Tool	Past Performance Assessment Tool	Attachment 10	16 JAN 2026		
11	Attachment 11 Project Specific Safety and Health Plan	Project Specific Safety and Health Plan	Attachment 11	26 SEP 2025		
12	Attachment 12 Estimated Volume and Dollar Ranges	Attachment 12 Estimated Volume and Dollar Ranges	Attachment 11	16 JAN 2026		

Section K - Representations, Certification, and other Statements of Offerors

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications--Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications.	Jun 2020

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters.Oct 2018

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror _ has _ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification.Nov 2021

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation [2.101](#).

(b) *Certification.* [Offeror shall check either (1) or (2).]

___ (1) The Offeror certifies that—

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control,

nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act ([22 U.S.C. 2593a](#)). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

— (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

- (i) Waived application under [22 U.S.C. 2593e](#)(d) or (e); or

(ii) Determined under [22 U.S.C. 2593e\(g\)\(2\)](#) that the entity has ceased all activities for which measures were imposed under [22 U.S.C. 2593e\(b\)](#).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations.Feb 2024

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with [13 CFR part 127](#), and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#). It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121](#) and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with [13 CFR part 127](#)) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with [13 CFR 127.300](#).

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 236220.

(2) The small business size standard is \$45M.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of [13 CFR 121.103\(h\)](#) and [13 CFR 125.8\(a\)](#) and [\(b\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a women-owned small business concern.

(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of [13 CFR 127.506\(a\)](#) through [\(c\)](#). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.*]

(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.*]

(6) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(7) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not an SDVOSB concern.

(8) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it _ is, _ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(9) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It _ is, _ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see [13 CFR 126.200\(e\)\(1\)](#)); and

(ii) It _ is, _ is not a HUBZone joint venture that complies with the requirements of [13 CFR 126.616\(a\)](#) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.219-1 Small Business Program Representations. Alternate I Feb 2024

Alternate I (Feb 2024). As prescribed in 19.309(a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

_ Black American.

_ Hispanic American.

_ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

_ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

_ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

_ Individual/concern, other than one of the preceding.

NFS Clauses Incorporated by Full Text

1852.225-72 Restriction on funding Activity with China – Representation Deviation Feb 2012

(a) Definition - "China" or "Chinese-owned" means the People's Republic of China, any company owned by the People's Republic of China or any company incorporated under the laws of the People's Republic of China.

(b) Public Laws 112-10, Section 1340(a) and 112-55, Section 536, restrict NASA from contracting to participate, collaborate, or coordinate bilaterally in any way with China or a Chinese-owned company with funds appropriated on or after April 25, 2011. Contracts for commercial and non-developmental items are excepted from the prohibition as they constitute purchase of goods or services that would not involve participation, collaboration, or coordination between the parties.

(c) Representation. By submission of its offer, the offeror represents that the offeror is not China or a Chinese-owned company.

(End of clause)

Section L - Instrs., Conds., and Notices to Offerors

L.1 COMMUNICATIONS REGARDING SOLICITATION

(1) Questions or comments regarding this solicitation must be submitted in writing via email using the format included in Section J, Attachment 7 and be directed to the following Government POC's:

National Aeronautics Space Administration

Office of Procurement,

Kennedy Space Center, FL 32988

Aaron.L.Kelley@nasa.gov

Benjamin.P.Crafton@nasa.gov

Jacqueline.A.Brooks@nasa.gov

Oral questions will not be answered due to the possibility of misunderstanding or misinterpretation.

Questions regarding this solicitation shall be submitted via e-mail to the Government Representatives no later than 10 calendar days from the RFP closing date.

(2) Questions or comments should be submitted in accordance with above to allow for analysis and dissemination of responses. Late questions or comments are not guaranteed a response prior to the proposal due date. The Contracting Officer will issue a written amendment to this solicitation to answer questions. Offerors are ENCOURAGED to submit questions **prior to** the last date for questions.

L.2 PROPOSAL PAGE LIMITATIONS (NFS 1852.215-81)(APR 2015)

(a) The following page limitations are established for each portion of the proposal submitted in response to this solicitation.

VOLUME	TITLE	COPIES REQUIRED	PAGE LIMITATION
Volume I	Administrative	1	Unlimited
Volume II	Factor 1 - Technical Approach	1	25 Pages
Volume III	Factor 2 - Past Performance	1	25 Pages

(b) A page is defined as one side of a sheet, 8 1/2" x 11", with at least one inch margins on all sides, using not smaller than 12 point type. Foldouts count as an equivalent number of 8 1/2" x 11" pages. The metric standard format most closely approximating the described standard 8 1/2" x 11" size may also be used. Other limitations /instructions identified as follows: N/A.

(c) Identify any exclusions to the page limits that are excluded from the page counts specified in paragraph (a) of this provision (e.g. title pages, table of contents) as follows: Table of contents, cover page, and title page. In addition, the Cost section of your proposal is not page limited. However, this section is to be strictly limited to cost and price information. Information that can be construed as belonging in one of the other sections of the proposal will be so construed and counted against that section's page limitation.

(d) If final revisions are requested, separate page limitations will be specified in the Government's request for that submission.

(e) Pages submitted in excess of the limitations specified in this provision will not be evaluated by the Government and will be returned to the offeror.

(End of provision)

L.3 ELECTRONIC SUBMISSION OF OFFERS

Offerors are required to submit electronic offers in response to this solicitation. Email is the only acceptable means of submission. Proposals sent by United States mail, commercial package delivery, hand delivery or facsimile will not be accepted. The electronic offer must arrive at Aaron.L.Kelley@nasa.gov, Benjamin.P.Crafton@nasa.gov and Jacqueline.A.Brooks@nasa.gov by the time specified in the solicitation. (Note: The NASA/KSC e-mail box is limited to 15MB of unencrypted and 10MB of encrypted data on a PC and 12 MB of unencrypted and 7 MB of encrypted data on a MAC. Additionally, the server may reject files within these size limits due to an array of unforeseen conditions.) Electronic offers that fail to furnish the required representations or information or that rejects any of the terms, conditions, and provisions of the solicitation may be excluded from consideration. Electronic offers must contain the required signatures and must be in a searchable PDF format. The Government reserves the right to make award solely on the electronic offer. However, if requested to do so by the Contracting Officer, the apparent successful offeror agrees to promptly submit the complete original signed offer. If an offer received at the Government facility by electronic data interchange is unreadable to the degree that conformance to the essential requirements of the solicitation cannot be ascertained, the Contracting Officer will immediately notify the offeror that the offer will be rejected unless the offeror provides clear and convincing evidence -

(a) Of the content of the offer as originally submitted;

(b) That the unreadable condition of the offer was caused by the Government software or hardware error, malfunction, or other Government mishandling.

Late proposals will be reviewed in accordance with FAR 15.107(b).

(End of Provision)

L.4 PROPOSAL PREPARATION INSTRUCTIONS

Offerors shall utilize the Proposal Checklist provided in Section J, Attachment 8 to ensure a complete and compliant submission. All proposal files shall be submitted in Adobe Portable Document Format (PDF).

Each volume shall be:

Submitted as a separate PDF file

Organized as detailed below

Sequentially numbered throughout

Accompanied by a cover sheet that includes:

Offeror's name

Complete address (including 9-digit ZIP code)

Phone number

Facsimile number

Email address

Date of offer

Volume number and title

Copy number

Solicitation identification number

Each volume shall also include a table of contents for easy reference to sections, figures, and illustrations. Information that is not directly stated within the proposal may not be included by reference to other sources.

Proposal Volumes shall be consistent with the following structure and tabbed accordingly:

1. VOLUME I - Administrative (Required Documentation)

a. Executive Summary: Each offeror shall submit an Executive Summary of no more than three pages total, which summarizes the key points from the offeror's Technical Capabilities and Past Performance.

b. Solicitation/Model Contract Representations and Certifications. Complete blocks of the SF 1442; in doing so, the offeror accedes to the contract terms and conditions as written in the Request for Proposal (RFP) Sections A through K. These sections constitute the model contract. An official having the authority to bind the offeror contractually must sign the SF 1442. One copy of SF 1442 must bear a signature. (Enter the "Cage Code" and "Unique Entity ID" in Block 14 on page 2).

c. Section G - Contract Administrative Data. Complete any fill-ins required; Paragraph G.7.

d. Section K - Representations, Certifications, and other Statements of Offerors. Complete representations, certifications, acknowledgments and statements. (Note: Offerors must also comply with the System Management for Award (SAM) requirements of FAR 52.204-7).

e. Acknowledgment of all amendments issued (if applicable);

f. Statement of the period for which the proposal is valid (not less than 180 calendar days);

g. BONDING CAPACITY

Offeror shall provide a letter, from an approved surety, stating the offeror has, as a minimum:

For Small Business offerors: A current bonding capacity for this acquisition of at least the Simplified Acquisition Threshold (SAT) (per project) and at least \$1 million for the aggregate project amount. The letter shall include the name and telephone number of the Bonding Company(s). Such bonding capacity should meet the requirements of FAR 52.228-15, Performance and Payment Bonds - Construction.

For 8(a) offerors: Due to the anticipated size and complexity of task orders under the 8(a) pool, offerors in this category shall provide evidence of bonding capacity at a minimum of \$5 million (per project) and at least \$10 million for the aggregate project amount. The letter shall include the name and telephone number of the Bonding Company(s). Such bonding capacity should meet the requirements of FAR 52.228-15, Performance and Payment Bonds - Construction. This requirement reflects the larger share of the overall contract value allocated to the 8(a) pool.

2. VOLUME II - Factor 1 - Technical Approach

a. The purpose of the Technical Approach Volume is to demonstrate the plan on how the requirements of this acquisition will be managed. The technical approach should consider the estimated quantities and construction magnitudes included in Section B as well as the Statement of Work included as Attachment 1 in Section J. The measures of merit for acceptability for each of the sub-factors and elements are outlined in Section M. The following sub-factors and elements shall be included in the Technical Approach:

i. Sub-Factor 1 - Program Management

Element 1 - Overall Management Approach

Element 2 - Management Organization

Element 3 - Quality Control

ii. Sub-Factor 2 - Project Planning and Execution

Element 1 - Workload Management

Element 2 - Subcontract Management

b. Design-Build: The sub-factors and elements must address information on the offeror's design-build team, including management/ organizational structure, qualifications of architects, engineers, accredited professionals, contractual arrangements, and lines of authority. The technical approach should address the design-build implementation approach to addressing H.1. Paragraph 5 (Design-Build 100%).

i. Discuss approach used to ensure the as-built construction satisfies all approved design requirements, including shop drawing review and approval process, and inspection, testing, and quality control procedures. Discuss the design team's associated interactions with and on behalf of the owner.

ii. Discuss approach used to maintain control of project costs without compromising technical requirements and standards.

3. VOLUME III - Factor 2 - Past Performance

a. The purpose of the Past Performance Volume is to provide a summary of recent and relevant efforts essentially comparable to this acquisition. The Government will use this information to perform a past performance evaluation as described in Section M. Current contracts or subcontracts performed, in whole or

part, within the past five (5) years immediately preceding the issuance of this solicitation will be considered RECENT. RELEVANCY is described in detail in Section M paragraph 4(c).

b. Recent and Relevant Contracts. Provide a comprehensive list of up to ten recent and relevant contracts to include the information listed below. If you believe a classified project is significant for this proposal, then simply state "Classified" where appropriate and provide points of contact.

1. Contract Number
2. Total dollar value (original and final)
3. Contracting Agency
4. Title of Contract
5. Government program manager (name, address, phone number)
6. Description of program/project
7. PCO and ACO (name, address, and phone number)
8. Period of performance
9. Type of Contract (Firm Fixed Price, Fixed Price Incentive, Cost Plus Fixed Fee, Cost Plus Award Fee, etc.)

c. Performance Evaluation Questionnaire (PEQ). The Government requests the offeror send out the questionnaire (see Attachment 6) for each contract listed above. Offerors shall request the customer to complete the questionnaire and return it to the Contracting Officer AT LEAST 10 DAYS prior to the proposal closing date /time, earlier if possible, but NO LATER THAN the proposal closing date. Once the questionnaires are completed by the Points of Contact (POC), the information contained therein shall be considered sensitive and shall not be released to you, the offeror. A cover letter for transmitting the questionnaire to each POC is included. You may include your own cover letter requesting completion of the questionnaire in addition to the cover letter provided. The Past Performance Volume shall include a list of questionnaire recipients to include two current POCs and phone numbers for each contract reference provided. The offeror is solely responsible for the accuracy of the contact information provided. Contractor Performance Assessment Reporting System (CPARS) Reports may be provided in lieu of the PEQ if available.

The completed PEQs shall be emailed by respondent directly to Aaron.L.Kelley@nasa.gov, Benjamin.P.Crafton@nasa.gov and Jacqueline.A.Brooks@nasa.gov.

d. Design-Build Past Performance: A past performance evaluation on each offeror's overall Design-Build experience as it relates to recent and relevant contracts identified in the offeror's Construction Project Listing will be performed. Offerors must ensure the past performance submitted highlights any Design-Build experience.

e. Safety and Health Program: The contractor MUST submit copy of Section J, Attachment 9. Attachment 9 shall contain the prime contractor's OSHA Total Recordable Incidence Rate (TRIR), OSHA Days Away, Restricted, Transfer, (DART) Rate, and designated Experience Modification Rate (EMR) used to calculate Workmen's Compensation Insurance. These rates will be considered in the past performance confidence assessment. Attachment 9, Safety and Health Program, is excluded from the 25-page limit for volume III.

The acquisition forecast for the next 5 years at KSC shows an increased need to execute mechanical requirements valued less than the simplified acquisition threshold (SAT).

Targeted Past Performance Submission for Mechanical Requirements:

In support of the Government's intent to reserve three (3) of the eight (8) total awards for offerors with demonstrated experience in mechanical construction requirements under the Simplified Acquisition Threshold (SAT), offerors are encouraged to clearly identify and highlight relevant past performance examples that meet the following criteria:

- Mechanical scopes of work (e.g., HVAC, plumbing, piping, mechanical systems integration)
- Projects valued below the SAT
- Work performed in similar operational environments (e.g., NASA centers, federal facilities)

Offerors should include sufficient detail to demonstrate the recency, relevancy, and quality of performance on these projects. These examples should be clearly labeled within Volume III - Past Performance Information to facilitate evaluation.

Offerors who do not possess relevant mechanical experience under the SAT are still encouraged to submit proposals, as the remaining awards will be based on overall best value considering the full range of construction capabilities within The Statement of Work.

Past Performance Information: When submitting past performance information, offerors should highlight relevant aspects of their own, their teaming partners', and joint venture participants' contract histories that best demonstrate their ability to successfully perform the current requirement. Past performance should reflect how previous work met or exceeded contract expectations. In evaluating this information, the Government will place greater weight on the experience of the prime offeror, unless the teaming arrangement indicates otherwise, to emphasize the capabilities of the entity with primary responsibility for contract execution. (Attachment 10: "Past Performance Assessment" is a tool used by NASA to record information regarding the past performance. No action required from offerors for this form.)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.204-7	System for Award Management.	Nov 2024
52.204-22	Alternative Line Item Proposal.	Jan 2017
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024
52.214-34	Submission of Offers in the English Language.	Apr 1991
52.215-1	Instructions to Offerors-Competitive Acquisition.	Nov 2021
52.216-27	Single or Multiple Awards.	Oct 1995
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work.	May 2014
52.225-10	Notice of Buy American Requirement-Construction Materials.	May 2014
52.232-13	Notice of Progress Payments.	Apr 1984
52.232-38	Submission of Electronic Funds Transfer Information with Offer.	Jul 2013

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.223-73 Alternate I	Safety and Health Plan Alternate I	Jul 2015
1852.223-73	Safety and Health Plan.	Jul 2015
1852.233-70	Protest to NASA.	Dec 2015

FAR Clauses Incorporated by Full Text

52.216-1 Type of Contract.Apr 1984

The Government contemplates award of a *maximum of 8 (eight) Indefinite Delivery Indefinite Quantity (IDIQ) Contracts with firm fixed price task orders* contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest.Sep 2006

(a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from *Jacqueline A. Brooks, Chief, Construction and Architect-Engineer Support Office (OP-CS)*

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Provisions: <https://www.acquisition.gov/> and NASA FAR Supplement Provisions: <https://www.hq.nasa.gov/office/procurement/regs/NFS.pdf>

(End of provision)

NFS Clauses Incorporated by Full Text

1852.236-74 Magnitude of Requirement.Dec 1988

The Government estimated price range of this project is between \$* and \$* *The magnitude of each task order will be described in each Request for Proposal.*

(End of provision)

KSC Clauses Incorporated by Full Text

KSC 1852.223-73 SAFETY AND HEALTH PLAN - Additional Requirements Oct 2023

(a) In addition to compliance with NFS provision 1852.223-73, the offeror shall comply with the following:

(1) If the resulting contract is for services and/or operations, the Safety and Health Plan shall be structured in accordance with Occupational Safety and Health Administration Instruction, CSP 03-01-005, Voluntary Protection Programs (VPP) Policies and Procedures Manual, Chapter 4.

(2) If the resulting contract is for construction, the Safety and Health Plan shall be prepared in accordance with KNPR 8715.7, KSC Construction Contractor Safety and Health Practices Procedural Requirements.

(3) When applicable, the plan shall address the policies, procedures, and techniques that will be used to ensure the safety and occupational health of the public, astronauts and pilots, the NASA workforce (including Contractor employees working on NASA contracts), and high-value equipment and property.

(4) The offeror shall include, as a component of their Safety and Health Plan, the offeror's proposed implementation of 52.223-6, Drug-Free Workplace. Additionally, the offeror shall include a copy of their proposed policy and plan required by 1852.223-74, Drug- and Alcohol-Free Workforce, if applicable. If applicable, the offeror's policy and plan shall include a full description of the program, and must include positions to be covered, testing events (pre-employment, random, etc.), and substances which the tests cover.

(b) The plan shall similarly address subcontractor employee safety and occupational health for those proposed subcontracts that contain one or more of the following conditions:

(1) The work will be conducted completely or partly on premises owned or controlled by the government.

(2) The work includes construction, alteration, or repair of facilities in excess of the simplified acquisition threshold.

(3) The work, regardless of place of performance, involves hazards that could endanger the public, astronauts and pilots, the NASA workforce (including Contractor employees working on NASA contracts), or high value equipment or property, and the hazards are not adequately addressed by OSHA or Department of Transportation (DOT) regulations (if applicable).

(End of provision)

Section M - Evaluation Factors for Award

SECTION M - EVALUATION FACTORS FOR AWARD

M.1 GENERAL

Proposals will be evaluated by the evaluation team in accordance with applicable regulations, including the Federal Acquisition Regulation (FAR) and the NASA FAR Supplement (NFS). The evaluation team will conduct the evaluation activities and report its findings to the Source Selection Authority (SSA), who is responsible for making the source selection decision. Acceptable proposals will be evaluated against the evaluation factors set forth in paragraph M.4 below. Offerors must meet all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements, as well as the evaluation factors. Incomplete proposals may be deemed unacceptable and removed from further consideration.

M.2 BASIS FOR AWARD

This acquisition will follow a two-phase selection process in accordance with FAR 36.101-2 and the procedures of FAR Part 15, Contracting by Negotiation.

Phase 1 will evaluate non-price factors, specifically technical approach and past performance.

Phase 2 will evaluate price based on offerors' proposals for the design-build 'seed' project, which is a task order included in the phase 2 solicitation. The seed project consists of a statement of objectives and supporting documentation that reflects the type of construction anticipated under the contract and will be awarded as the initial task order.

This is a competitive best value source selection conducted in accordance with FAR Part 15 and NFS 1815.305. Awards will be made to offerors who are determined to be responsible under FAR Part 9, whose proposals conform to the solicitation requirements, and who, based on an integrated assessment of the evaluation criteria, represent the best value to the Government, as described in paragraph M.5.

M.3 AWARD WITHOUT DISCUSSIONS

In accordance with FAR 52.215-1, the Government intends to evaluate proposals and make awards without discussions (except for clarifications as described in FAR 15.202(a)(2)). Therefore, offerors are encouraged to submit their best proposal in the initial submission. However, the Government reserves the right to conduct discussions if the Contracting Officer determines them to be necessary. Multiple awards may be made as a result of this solicitation.

M.4 EVALUATION PROCESS

The evaluation process will consist of a two-step process for both the pool of general contractors and the pool of mechanical discipline contractors. Phase 1 will consider the non-price factors of technical approach and past performance. Price will be evaluated during Phase 2 based on the offerors' proposals in response to the design build "seed" project.

Offerors will be checked in the System for Award Management (SAM) for current entity registration, representations and certifications, and the exclusions. Proposals will also be checked for minor informalities or irregularities.

PHASE 1

EVALUATION OF NON-PRICE/TECHNICAL FACTORS

Offerors will be evaluated on the non-price/technical factors of Technical Approach and Past Performance.

FACTOR 1 - TECHNICAL APPROACH

The Government technical evaluation team will evaluate technical proposals on an acceptable/unacceptable basis. The following sub-factors will be evaluated:

Sub-Factor 1 - Program Management

Element 1 - Management Approach

Description: This element assesses how well the offeror's approach manages the overall contract and the resulting Task Orders

Measure of Merit: The element is satisfied when the offeror's proposal clearly and logically addresses and meets the requirements specified below and within the contract Statement of Work (SOW). The standard is met when the proposal:

Management Approach: Describes how the offeror plans to manage the entire contract, and the Task Orders issued for each Contract Line-Item Number (CLIN), including Design/Build requirements.

Organizational Diagram: Includes a diagram that clearly shows the lines of authority from the Program Manager to subcontracting management. This should cover areas such as site investigation, site superintendence, and quality control.

Subcontracting Plan: Specifies the offeror's proposed level of subcontracting to complete the work, clearly outlining the tasks that will not be handled by in-house resources.

Partnering Approach: Describes the strategy for collaborating with accredited Architectural and Engineering (A&E) firms and construction contractors simultaneously for Design/Build projects.

Element 2 - Management Organization

Description: This element assesses the adequacy of the offeror's key staff personnel and their overall composition.

Measure of Merit: The element is satisfied when the offeror's proposal clearly and logically addresses and meets the requirements specified below and within the contract Statement of Work (SOW). The standard is met when the proposal:

Key Staff Qualifications: Identifies key program and project management staff along with their qualifications, such as education, training, licenses, and relevant experience for the tasks they will perform if awarded the contract.

Decision-Making Authority: Defines clear lines of decision-making authority between management and staff members, with an emphasis on the authority of the local Program Manager for on-site decisions.

Element 3 - Quality Control

Description: The Government will assess the adequacy of the offeror's quality control procedures.

Measure of Merit: The element is satisfied when the offeror's proposal clearly and logically addresses and meets the requirements specified below and within the contract Statement of Work (SOW). The standard is met when the proposal:

Quality Control Approach: Describes the offeror's quality control strategy for the STOCC II and explains how it will mitigate risks on individual Task Orders.

Surveillance Responsibility: Specifies who is responsible for overseeing the work of both subcontractors and in-house personnel.

Deficiency Management: Outlines the process for accepting or rejecting work, documenting and resolving deficiencies for tasks performed by in-house staff or subcontractors, and implementing corrective actions to address poor performance by any in-house staff or subcontractor staff.

Superintendence Requirements: Explains how the requirements of FAR 52.236-6, titled "Superintendence by the Contractor," will be met. This includes detailing how the superintendent will be qualified to supervise various trades to ensure quality workmanship.

Sub-Factor 2 - Project Planning and Execution

Element 1 - Workload Management

Description: This element assesses the adequacy of the offeror's ability to manage the contract and the resulting Task Order workload.

Measure of Merit: The element is satisfied when the offeror's proposal clearly and logically addresses and meets the requirements specified below and within the contract Statement of Work (SOW). The standard is met when the proposal:

Documented Experience: Provides evidence of experience in performing at least three construction projects simultaneously.

Response Plan: Describes a plan for responding to Task Order RFPs issued for each CLIN within the timelines specified in the Master Statement of Work (SOW).

Execution Plan: Outlines a strategy for handling many Task Orders within a highly compressed time frame due to funding surges and emerging requirements.

Support Plan: Describes a strategy for obtaining additional subcontractor support and/or enhancing existing in-house project supervision for Task Orders during peak workload periods in any contract period.

Scheduling Methods: Describes the methods and procedures for scheduling work to ensure that performance periods are met.

Project Tracking and Communication: Identifies the methods and tools used to track project progress and outlines how to interface with the Government Contract Officer and COR/technical personnel regarding project status.

Element 2 Subcontract Management

Description: The Government will assess the adequacy of the offeror's ability to acquire qualified subcontractor support and the policies/procedures for managing subcontractor resources required for all Task Orders issued.

Measure of Merit: The element is satisfied when the offeror's proposal clearly and logically addresses and meets the requirements specified below and within the contract Statement of Work (SOW). The standard is met when the proposal:

Subcontract Management Experience: Provides evidence of experience in managing subcontracts and multiple subcontractors for at least three projects (design and/or construction) simultaneously.

Subcontractor Plan: Clearly and logically describes the methods and criteria for acquiring qualified subcontractors. This includes considering their previous experience, current capabilities, and the quality of their past work.

Subcontractor Management Policies and Procedures: Proposal clearly describes methods of surveillance, quality control, scheduling, performance, and administrative issues such as payroll submission and Davis-Bacon Act Enforcement.

Failure to meet all requirements under the Technical Approach Factor will result in an "UNACCEPTABLE" rating, leading to elimination from further consideration for the contract award.

FACTOR 2 - PAST PERFORMANCE

The Government will evaluate the offeror's demonstrated record of performance in providing construction services that meet customer needs, with a focus on work relevant to the STOC II requirements. This evaluation will consider how well recent, relevant efforts were performed and will serve as an indicator of the offeror's ability to perform under the prospective contract.

NASA will assess past performance using information submitted in accordance with Section L, Past Performance Information - Volume III, as well as any other information available to the Government from independent sources. The evaluation will focus on how effectively contract objectives--such as technical performance, management, safety/quality control, and cost--were achieved on related projects.

The evaluation team will integrate the recency, relevancy, and quality of performance across all evaluated efforts to develop an overall past performance confidence assessment rating. This rating reflects an integrated assessment of:

The offeror's recent and relevant performance; and

The recent and relevant performance of any joint venture participants whose efforts will significantly influence contract performance.

Past performance of joint venture partners will be included in the aggregate evaluation. However, the past performance of other teaming partners or subcontractors will not be considered.

Note: Targeted Selection for Mechanical Requirements

To ensure the award pool includes contractors with demonstrated capability to support anticipated mechanical construction requirements under the Simplified Acquisition Threshold (SAT), the Government intends to reserve **three (3) of the eight (8) total awards** for offerors whose past performance demonstrates:

Successful execution of mechanical scopes of work (e.g., HVAC, plumbing, piping)

Experience with projects valued below the SAT

Performance in similar operational environments (e.g., NASA centers, federal facilities)

These three awards will be made to the highest-rated offerors in this category, based on the evaluation criteria outlined in this section. The remaining five awards will be made based on overall best value to the Government, considering the full range of relevant construction experience.

The following areas will be evaluated:

Recency Assessment: An assessment of the past performance information will be made to determine if it is recent. To be recent, the effort must have been completed or performed during the past three years from the date of the issuance of this solicitation. Efforts that have not yet been completed shall have had at least six months of performance prior to the date of issuance of this solicitation. Past performance information that fails these conditions shall not be evaluated. If the removal of one or more projects from the past performance evaluation pool results in the number of evaluated projects to fall below the minimum project requirement of three, the offeror will be removed from further consideration for award.

Relevance Assessment: The Government will conduct an evaluation of all recent performance information obtained to determine how closely the effort relates to the STOC II. The past performance summary and

information that may be obtained from other sources will be used to establish the degree of relevance of the past performance.

The Government will use the following degrees of relevance when assessing recent contracts:

Degree	Description
RELEVANT (R)	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
NOT RELEVANT (NR)	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Safety Past Performance: The evaluation of past performance will include assessment of the overall safety record of the offeror during the performance of previous contracts, to include maintaining acceptable TCIR, EMR, and DART rates. A contractor with a lower EMR and DART rates will receive better rating of confidence, while a contractor with a higher EMR and DART rates will receive a lower rating of confidence. A contractor's EMR rating less than 1.0 is needed to be rated a Very High Level of Confidence.

Performance Quality: In conducting the Past Performance evaluation, the Government reserves the right to use both the information provided in the offeror's Past Performance Proposal and information obtained from other sources, to include but not limited to, Contractor Performance Assessment Reporting System (CPARS), Defense Contract Management Agency (DCMA), commercial sources, and interviews with previous customers. The review may result in positive or adverse findings. An adverse finding is defined as past performance information that supports an unacceptable rating on any evaluation element or any unfavorable comment received from sources without a formal rating system. Offerors may be given the opportunity to clarify adverse past performance information to which the offeror has not previously had an opportunity to respond. For adverse information identified, the evaluation will consider the number and severity of the problem(s), mitigating circumstances, and the effectiveness of corrective actions that have resulted in sustained improvements. Process changes will only be considered when objectively measurable improvements in performance have been demonstrated.

Past Performance Ratings: The offeror's relevant experience and past performance will be reviewed, and an assessment made that reflects the Government's judgment of the probability of each offeror successfully accomplishing the proposed effort based on that offeror's demonstrated performance. Past performance shall be evaluated for each offeror using the following levels of confidence ratings:

Very High Level of Confidence

The offeror's relevant past performance is of exceptional merit and is very highly pertinent to this acquisition, indicates exemplary performance in a timely, efficient, and economical manner and very minor (if any)

problems with no adverse effect on overall performance. Based on the offeror's performance record, there is a very high level of confidence that the offeror will successfully perform the required effort. (One or more significant strengths exist. No significant weaknesses exist.)

High Level of Confidence

The offeror's relevant past performance is highly pertinent to this acquisition; demonstrating very effective performance that would be fully responsive to contract requirements. Offeror's past performance indicates that contract requirements were accomplished in a timely, efficient, and economical manner for the most part, with only minor problems that had little identifiable effect on overall performance. Based on the offeror's performance record, there is a high level of confidence that the offeror will successfully perform the required effort. (One or more significant strengths exist. Strengths outbalance any weakness.)

Moderate Level of Confidence

The offeror's relevant past performance is pertinent to this acquisition, and it demonstrates effective performance. Performance was fully responsive to contract requirements; there may have been reportable problems, but with little identifiable effect on overall performance. Based on the offeror's performance record, there is a moderate level of confidence that the offeror will successfully perform the required effort. (There may be strengths or weaknesses, or both.)

Low Level of Confidence

The offeror's relevant past performance is at least somewhat pertinent to this acquisition, and it meets or slightly exceeds minimum acceptable standards. Offeror achieved adequate results; there may have been reportable problems with identifiable, but not substantial, effects on overall performance. Based on the offeror's performance record, there is a low level of confidence that the offeror will successfully perform the required effort. Changes to the offeror's existing processes may be necessary in order to achieve contract requirements. (One or more weaknesses exist. Weaknesses outbalance strengths.)

Very Low Level of Confidence

The offeror's relevant past performance does not meet minimum acceptable standards in one or more areas; remedial action was required in one or more areas. Performance problems occurred in one or more areas which, adversely affected overall performance. Based on the offeror's performance record, there is a very low level of confidence that the offeror will successfully perform the required effort. (One or more deficiencies or significant weaknesses exist.)

Neutral

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance [see FAR 15.202(c)].

Offerors evaluated and assessed at anything less than a "High Confidence" rating for past performance, will not be considered for Phase 2.

PHASE 2

EVALUATION OF PRICE/TASK ORDER PROPOSAL

Only the top-rated offerors in Phase 1 (maximum of five general contractors and three mechanical contractors) will be selected to submit proposals in Phase 2. Offerors selected in Phase 2 will be evaluated on

the price and technical factors of the Design/Build Task Orders. Evaluation criteria of each Task Order will be included per the ordering procedures outlined in the Ordering Procedures.

M.5 METHODOLOGY USED FOR PROPOSAL EVALUATION

STEP 1:

Review for Responsiveness: The Government will review all proposals to determine if each offeror has submitted a responsive proposal, and that all required documentation complies with the solicitation instructions. Review of the System for Award Management (SAM) will be conducted to determine if an offeror has an active exclusion, as well as a review of the Offerors Representations and Certifications to determine eligibility for award for both the Small Business (SB) firms (CLINs 0001 - 0003) and 8(a) firms (CLINs 0004 - 0006) assigned the NAICS code 236220. All other participants are deemed ineligible to submit offers. Any non-responsive proposal will be handled in accordance with NFS 1815.305- 70, "Identification of Unacceptable Proposals", Offerors whose proposals are found to be non-responsive in any area or offerors who has an active exclusion listed in SAM will be eliminated from the competition without further consideration, all other offers will be considered responsive and will move forward for further evaluation.

STEP 2:

Evaluate Technical Approach and Past Performance: All responsive proposals will be evaluated for technical acceptability and past performance.

Technical Approach Evaluation: Failure to meet all of the requirements under the Technical Approach Factor will result in an "UNACCEPTABLE" rating and elimination from further consideration for contract award.

Past Performance Evaluation: Offerors evaluated and assessed at anything less than a "High Confidence" rating for past performance, will not be considered for Phase 2. All Offers with a Technical Approach (Factor 1) rated as "ACCEPTABLE" and a Past Performance Confidence Rating (Factor 2) at "High Confidence" or "Very High Confidence" will move forward for further evaluation.

STEP 3:

Selection Decision for Phase 1: Offerors receiving a "Very High Confidence" rating will be selected before those receiving a "High Confidence" rating.

In the event that more than three (3) small businesses receive the same rating, tie-breakers will be applied in the order of preference listed below. The evaluation results will be forwarded to the Source Selection Authority (SSA), who will select up to three (3) small business offerors to advance to Phase 2. If the SSA determines that fewer than three offerors should advance, the SSA may select fewer than three or request further evaluation.

Similarly, if more than five (5) 8(a) offerors receive the same rating, tie-breakers will be applied in the order of preference listed below. The evaluation results will be forwarded to the SSA, who will select up to five (5) 8(a) offerors to move on to Phase 2. The SSA may also choose to select fewer than five or request further evaluation.

1st Tiebreaker Criterion - Safety Performance (EMR):

In the event that two or more proposals are evaluated as equal in all other respects, the Government may use the offerors' most recent Experience Modification Rate (EMR) as a tiebreaker. Preference will be given to the offeror with the lower EMR, as an indicator of a stronger safety record and reduced performance risk.

2nd Tiebreaker Criterion - Aggregate Bonding Capacity:

In the event that two or more proposals are evaluated as equal in all other respects, including the Offeror's most recent EMR, the Government may use the Offerors' aggregate bonding capacity provided within Volume I, paragraph (g) as a tiebreaker. Preference will be given to the offeror with the higher aggregate bonding capacity, as an indicator of greater financial strength and capacity to support concurrent task orders under this contract.

Tie-Breaker and On-Ramp Consideration:

In the event of a tie among proposals that are otherwise equal in all evaluated respects, the Government may apply secondary discriminators such as safety performance (e.g., EMR) or aggregate bonding capacity.

Offerors who are not selected due to tie-breaking decisions, but who are otherwise deemed fully qualified, will be given priority consideration during any future on-ramp opportunities (see section H.3).

STEP 4:

Phase 2: Offerors selected to move onto Phase 2 will be evaluated on the price and technical factors of the design/build seed project. The evaluation criteria of the design/build seed project will be provided in Phase 2 and will be used to determine price reasonableness and technical acceptability.

Price: Proposed prices in Phase 2 shall be evaluated using one or more of the price analysis techniques under FAR 15.404-1(b) to determine whether the offeror's proposed prices are fair and reasonable. Prices that are unreasonably high or low may indicate an offeror's lack of understanding of the requirement and/or ability to properly estimate and propose on future task order solicitations.

The Government reserves the right to award the design/build seed project without discussions but may conduct discussions if the Government determines it is necessary. The Government may make a final determination as to whether the offeror's design/build seed project proposal is acceptable or unacceptable solely on the basis of the initial proposal submitted. Accordingly, offerors are advised to submit initial proposals that are fully and clearly acceptable without additional information.

STEP 5:

Process IDIQ Awards: Only those offerors selected into Phase 2 that provide a proposal that meets the technical/design criteria of the "Seed Project" at a fair and reasonable price may be awarded an IDIQ Contract. Up to five (5) 8(a) contract awards and up to three (3) Small Business contracts may be awarded based on the Source Selection Authorities' decision. The "Seed Project" will be awarded to only one offeror that represents the best value.

M.6 SOURCE SELECTION DECISION

Up to five (5) 8(a) contract awards and up to three (3) small business contract awards may be made. The award of multiple IDIQ Contracts will be based on the "2-Phase selection process" outlined in FAR Part 36.101-2 and the procedures of FAR Part 15, Contracting by Negotiation. The Source Selection Authority, exercising prudent business judgment, will make the source selection decisions to those offerors selected into Phase 2 that provide a proposal that meets the technical/design criteria of the Seed Project at a fair and reasonable price. The Seed Project will be awarded to only one offeror that represents the best value.

[END OF SECTION]